

property and should have warned about or corrected the conditions (see, e.g., FAC ¶ 18), Defendant Brightview's FAA generally denies that allegation. The FAA alleges no facts to constitute the defense, only conclusory statements which are insufficient to overcome demurrer.

As such, the demurrer to the twenty-first affirmative defense is SUSTAINED.

24th A/D (standing)

The twenty-fourth affirmative action alleges that "plaintiff does not have standing to assert the causes of action in plaintiff's First Amended Complaint against this answering defendant because co-defendants and cross-defendants allowed for a potential dangerous condition to emerge when, without providing this answering defendant with proper notice, failed to remediate any alleged build up of water and grass clippings that Plaintiff should have noticed before she claims she slipped and fell due to her own negligence."

Code of Civil Procedure section 367 provides, "Every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute." "One who invokes the judicial process does not have 'standing' if he . . . does not have a real interest in the ultimate adjudication because the actor has neither suffered nor is about to suffer any injury of sufficient magnitude reasonably to assure that all of the relevant facts and issues will be adequately presented." (*California Water & Telephone Co. v. County of Los Angeles* (1967) 253 Cal.App.2d 16, 22–23.)

Here, the FAA concedes Plaintiff allegedly slipped and fell, sustaining injuries (see, e.g., FAA at 6:23-24, 7:18-24), supporting her standing to pursue claims based on the incident.

As such, the demurrer to the twenty-fourth affirmative defense is SUSTAINED.

15 days leave to granted to correct the deficiencies noted.

		Jury trial remains set for 12/14/26. Plaintiff to give notice.
17	Milman vs. Sunshine Behavioral Health Group, LLC	<u>Motion to Compel Arbitration and Stay Proceedings</u> The court GRANTS Defendants SUNSHINE BEHAVIORAL HEALTH GROUP, LLC and CHAPTERS CAPISTRANO, LLC’s motion to compel arbitration and stay action. On a motion to compel arbitration under the Federal Arbitration Act (“FAA”), the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (<i>Brennan v. Opus Bank</i> (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; <i>Dean Witter Reynolds, Inc. v. Byrd</i> (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”].) “The trial court determines whether an agreement to arbitrate exists ‘using a three-step burden-shifting process.’ [Citation.] First, the party petitioning to compel arbitration must state ‘the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.’ [Citations.] Signatures on the arbitration agreement need not be authenticated at this initial stage.” (<i>West v. Solar Mosaic LLC</i> (2024) 105 Cal.App.5th 985, 992.) “If the [moving party] meets their initial burden, the burden of production shifts to the party opposing the [motion] to compel arbitration, who must offer admissible evidence creating a factual dispute as to the agreement's existence. [Citation]. When the dispute centers on the authenticity of signatures, ‘[t]he opponent need not prove that his or her purported signature is not authentic, but